

Lecture 1: 03/03/2026

1.1 Fusion of Horizons

- **Definition:** The integration of different intellectual perspectives, particularly those of technicians and philosophers, to understand the meaning, implications, and functioning of technological systems.
- **The Collaboration:** Modern technology requires interaction between designers and regulators. While technicians focus on efficiency and practical outcomes, philosophers highlight conceptual problems.
- **The Goal:** A mutual enrichment where philosophers understand technical procedures, and technicians reflect on the ethical and philosophical implications of their work.

1.2 Cyber and Computer Law: Method and Object

1.2.1 Cyber

- **Common Definition:** Broadly relates to digital technologies, algorithms, and digital infrastructure.
- **Etymological Definition:** Derives from *cybernetics* (the discipline of control and communication in machines). The root is the Greek *kybernetes* (helmsman or pilot), which inherently implies governance, manipulation, and control over systems, rather than mere observation.
- **Heidegger's View (1966):** Heidegger argued that philosophy was being replaced by cybernetics, the science of control. He viewed modern technological thinking as treating the world as a *Bestand* (a standing reserve or pantry)—a collection of resources to be calculated, optimized, and exploited. In this paradigm, humans risk becoming mere data points within the system.

1.2.2 Computer

- **Etymology:** From the Latin *cum putare* (together/along with + to think/prune).
- **Three Meanings of *Putare*:**
 1. **Intellectual:** Believing, thinking, judging.
 2. **Numerical:** Calculating, doing mathematics, estimating.

3. **Agricultural:** To prune or cut branches to create space (surviving in the Italian *potare*).

- **Calculating vs. Meditative Thinking:**

- **Calculating:** Fast, deterministic, oriented toward productivity and measurable results (dominant in cybernetics).
- **Meditative:** Contemplative thinking that observes reality without intending to manipulate it.
- *Note:* Both forms require "pruning"—eliminating the unnecessary to focus on what is relevant.

1.2.3 Law & Methodological Tools

To understand the law, we use two primary philosophical tools:

1. Hermeneutics (The Art of Interpretation)

- **Origin:** Connected to the Greek god Hermes, a messenger and protector of travelers/merchants who engaged in transactions and translations.
- **Nature of Interpretation:** Interpretation is a transaction where meaning is adapted to new contexts. It is an existential tool humans use to make sense of life.
- **Key Traits:** Every interpretation is *situated* (embedded in a context) and *inherited* (embedded in tradition). Words are "storages of experience" whose meanings evolve culturally, requiring the interpreter to unveil hidden layers.

2. Phenomenology

- **Definition:** The method aimed at bringing phenomena and their hidden layers to light.
- **Origin:** From Greek *phainomai* (to show oneself/appear/seem).
- **The Observer:** A phenomenon requires a relationship; something must appear *to* someone. Because observers are situated historically and culturally, their perspective is always partial (like only seeing the illuminated side of the moon). Phenomenology accepts that no single observer possesses the complete truth.

Law and Community

- **Etymology:** *Lex* connects to the verb *legere* (to read/to gather). Law functions by "gathering" individuals into a community bound by common rules.
- **Natural vs. Human Laws:** Natural laws (physics/biology) cannot be violated, whereas human laws are agreements expressed through language that

can be violated and must be reinterpreted as society evolves.

- **Law vs. Justice:** They are not identical. Law is the tool used to promote justice (treating different individuals fairly and with equal dignity). Jurists must master foundational principles rather than just current rules to navigate rapid digital disruption.

Lecture 2: 09/03/2026

2.1 Phenomenon

- **Dual Meaning of "Appearing":**
 1. **Showing itself:** Facts do not speak for themselves; they require an observer to interpret them.
 2. **Seeming:** Something may appear a certain way but be different in reality.
- **Consistency:** For something to be a true phenomenon, it requires *qualitative* consistency (recognizable traits) and *quantitative* consistency (sufficient intensity/duration). *Example: One drop is not rain; one email is not the Internet.*

2.2 Phenomenology & Logos

- **Humble Observation:** Phenomenology describes how things manifest to us, acknowledging the fallibility and partiality of the observer. It differs from natural sciences, which try to state what a thing objectively "is".
- **Logos:** A term with a broad semantic field encompassing thought, word/speech, reasoning, and God (in Christian tradition). Human thought takes place within language, and words carry the heritage of a community's culture.
- **Multiple Interpretations:** Because language and perspective mediate experience, multiple valid interpretations can exist for the same phenomenon (e.g., a forest fire viewed by a firefighter vs. a poet).

2.3 The Role of an Interpreter

- **Explanare:** To interpret is to *explain* (to make plain), untangling the threads of a "text" (from *textus*, meaning woven).
- **Truth vs. Freedom:** Totalitarian systems claim one true interpretation (prioritizing truth over freedom), while democratic systems value a chorus of perspectives (prioritizing freedom). Interpreters must remain humble.

2.4 Science as The Holder of Truth

- **The Scientific Paradigm:** Science approaches reality as a collection of "things" (*res*) to be measured and controlled (Instrumental Thinking).
- **Experience vs. Experiment:**
 - **Experience:** Broad, open-ended, and not pursuing a predetermined goal (*experiri*: to try/test).
 - **Experiment:** Controlled and structured to test hypotheses and produce repeatable laws.
- **The Blind Spot:** Science defines what things are composed of (e.g., water as H_2O), but ignores the deeper philosophical question of what "being" actually means.

2.5 Martin Heidegger

2.5.1 Biography and Intellectual Context

- Born in 1889 in Messkirch, Germany.
- Moved from theological studies to ontological research, seeking to question the foundations of existence rather than accepting dogmas.
- Wrote his unfinished masterpiece, *Being and Time*, in a small Black Forest hut.

2.5.2 Ontology: Ontic vs. Ontological

Term	Definition	Primary Domain
Ontic	Refers to <i>entities</i> —the things that exist.	Science
Ontological	Refers to the <i>being</i> of those entities—what it means for them to exist.	Philosophy

- **Existentialism Context:** Rose post-World Wars, questioning if scientific/technological efficiency could solve human disorientation, suffering, and mortality in mass-produced societies.

2.5.3 Existence and the Question of Being

- **The Human Difference:** Humans are unique because we question our own existence.
- **Existence (*ex-sistere*):** Means "to stand out" or "step outside".

- **Search for Meaning (*Sensus*):** Meaning implies both sense and *direction*. Unlike animals that blindly follow biological instinct, humans create a distance between what they are and what they seek to become, constantly searching for meaning.

2.5.4 Dasein

- **Definition:** Literally means "being-there" or "being-here" (*Da-sein*).
- **Core Trait:** It is the term Heidegger uses for the human being. Dasein is aware of its presence in the world and acutely aware of its own mortality (the possibility of no longer being).
- **Existentials:** The fundamental, recurring structures that characterize how Dasein experiences existence.

Lecture 3: 10/03/2026

3.1 The Question of Being & Human Intelligence

- **The Ontic Blind Spot:** Science usually understands "being" simply as an *entity* (a thing or reality composed of things), considering whatever is not a thing to be "nothing" (no-thing). Heidegger notes that while science investigates entities and their properties, it overlooks the deeper question of what it means for something *to be*.
- **Philosophy's Task:** Philosophy must awaken us from our "ontic sleep" (becoming absorbed in entities and treating ourselves as mere things) and return to the question of being.
- **Embodied Intelligence:** Heidegger proposes that human intelligence isn't just in the brain; it is connected to the world through our senses. The search for meaning (*sensus*) is grounded in our bodily senses, meaning human understanding arises from an embodied interaction with reality.

3.2 The Existentials of Dasein

Heidegger identifies the recurring structures that shape human existence, called "existentials".

1. Being-in-the-World (*In-der-Welt-sein*)

- The "world" is not merely a spatial container, but a network of inherited meanings and practical relations.

- Humans *dwell* in a world that is technically arranged through tools and instruments, raising contemporary questions about what happens when our shared environment shifts from physical spaces to digital platforms.

2. Being-with (*Mitsein*)

- Human existence is fundamentally characterized by the presence of others. From birth, our survival depends on the care of others.
- However, conforming to others can also serve as a refuge to escape individual existential anxiety, pushing us to shape our identity around external expectations.

3. Thrownness (*Geworfenheit*)

- This represents our passive condition: we are "thrown" into existence, born into a specific time, place, and body without having chosen it.
- Unlike the Christian concept of creation (a divine grace), thrownness carries a somewhat tragic, non-theological dimension because we must live a life we did not pre-select.

4. Possibility and Project (*Sein-können* / *Entwurf*)

- Despite being thrown, Dasein is not static; it is defined by its openness to possibilities (*Sein-können*, the ability-to-be).
- Dasein is a "thrown project" (*geworfener Entwurf*). We project ourselves toward the future, choosing paths (unlike a pre-written *program*), even while knowing all possibilities will eventually be canceled by death.

5. Affective Situatedness (*Befindlichkeit*)

- Dasein experiences the world through emotions, which are fundamental structures, not secondary accidents.
- Emotions (fear, anxiety, joy) act as the "colors of being," proving that we never approach reality from a position of pure, detached neutrality.

3.3 Critique of the Metaphysical Subject & Understanding Before Knowledge

- **The Metaphysical Illusion:** Heidegger rejects the traditional philosophical/scientific idea of a purely neutral, autonomous subject (a stable foundation or Cartesian rational center) that operates completely detached

from affectivity. Dasein doesn't even control its own initial placement in the world (its "Da" or "there").

- **Understanding (*Verstehen*) vs. Knowing:** The scientific act of *knowing* (observing objectively) is a secondary mode. Before we analyze things scientifically, we have an interpretive, practical *understanding* of them. For instance, children explore objects through manipulation and use long before caring about their chemical composition.

Lecture 4: 16/03/2026

4.1 Dasein, Entities, and the World

When Dasein encounters objects in the world, its first approach is practical, not theoretical.

- **Ready-to-Hand (*Zuhandenheit*):** Encountering an entity as a tool. The object is usable and practical, becoming almost transparent during use (like a hammer when hammering).
- **Present-at-Hand (*Vorhandenheit*):** Encountering an entity theoretically or as a detached object available for observation.
- **Circumspection (*Umsicht*):** The practical gaze through which we view objects not in isolation, but within a "chain of reference" (e.g., a nail refers to a hammer, to hanging a painting, to making a home pleasant, which ultimately refers back to Dasein). Modern systems try to order this reality (*Gestell*) and keep resources constantly at our disposal (*Bestand*).

4.2 Dasein and the Presence of Others

Dasein encounters other Daseins through the traces of their activities in the shared world.

- **Who are the others?** They are not entirely separate beings, but rather "those from whom one generally is not distinguished by, and among whom one also is".
- **Solitude as a Deficient Mode:** Even when physically alone, Dasein remains structurally related to others. The absence of others is a "deficient mode" of being-with (*Mitsein*).

4.3 Care for Things vs. Care for Others

Heidegger differentiates between how we handle objects and how we handle people.

Target	Mode of Interaction	German Term	Key Trait / Attitude
Entities (Things)	To procure / Take care of	<i>Besorgen</i>	Circumspection (<i>Umsicht</i>): Manipulating and organizing objects as instruments.
Dasein (People)	To have care for	<i>Fürsorge</i>	Respect / Consideration (<i>Rücksicht</i> or <i>Nachsicht</i>): Helping others realize their possibilities.

- **Deficient Care:** Neglecting or remaining indifferent to others.
- **Substitutive Care:** Treating the other like an entity by taking their place and making decisions for them. This relieves their burden but removes their freedom and turns them into a dependent.
- **Authentic Care:** Restoring the other's possibilities without removing their responsibilities, using *Rücksicht* (stepping back respectfully) and *Nachsicht* (coming closer with indulgence).
- **Interest over Empathy:** We understand others not through magical empathy, but through *interest* (*inter esse* - to be among), sharing the same existential condition and drawing inspiration for our own projects.

4.4 Being-With Others and Everyday Conformity

In social life, humans exist in a tension: we desire to belong, but we also strive to affirm our uniqueness. This leads to "comparative measurement," where we constantly judge ourselves against others.

4.4.1 The Dictatorship of *das Man*

- **Das Man:** The impersonal "one" (as in "one does this" or "one says that"). It represents anonymous, average public opinion.
- **Leveling Effect:** *Das Man* establishes what is normal, neutralizing originality and flattening everything to an average level.
- **Relief from Responsibility:** Humans welcome this dictatorship because it relieves us of the burden of making our own decisions. By doing what "one does," we avoid the anxiety of true responsibility.

4.4.2 Authenticity and Inauthenticity

Because Dasein is dynamic, it oscillates between two states:

- **Inauthenticity** (*Uneigentlichkeit*): The condition where Dasein belongs to others and conforms entirely to the anonymous logic of *das Man*.
- **Authenticity** (*Eigentlichkeit*): The state of being truly oneself, owning one's possibilities rather than having them dictated by public conformity.

Lecture 5: 17/03/2026

5.1 Everydayness and the Rule of *das Man*

In everyday life, our existence is shaped by our being-with others. However, this shared dimension can devolve into conformity, where we adapt to the "average" interpretations imposed by the dictatorship of *das Man*. Heidegger identifies three manifestations of this everydayness (*Alltäglichkeit*):

1. Chatter (*Gerede*)

- **Definition:** A mode of communication where language loses its rich horizon of meanings and is reduced to averageness.
- **Mechanism:** Discourse aims at dissemination (going "viral") rather than tracing things back to their foundations. Statements gain authority simply because "that is what is said," spreading a superficial, groundless understanding where everything appears accessible but nothing is truly grasped.
- **Everyday Suspension:** Dasein floats in a comfort zone of public interpretation, avoiding the disorientation of truly questioning reality.

2. Curiosity (*Neugier*)

- **Definition:** A degraded form of "care" that seeks new objects without genuine commitment.
- **Characteristics:** Curiosity is driven by a restless search for novelty, marked by an *inability to dwell* and *constant distraction*. It refuses to stop and understand; it only wants to "see" in order to claim it has seen. It is fundamentally rootless.
- **The Link:** Chatter dictates what one "must" see, and curiosity, being restless, relies on chatter to orient itself.

3. Ambiguity (*Zweideutigkeit*)

- **Definition:** The condition where everything appears clear and understood, while in reality, nothing is genuinely grasped.

- **Consequence:** Individuals speak competently about things they haven't experienced, elevating superficial anticipation over deep knowledge. This creates a nervous environment of mutual surveillance and subtle judgment.

5.2 Fallenness (*Verfallen*)

- **Definition:** The state of falling into the groundlessness of everyday inauthenticity, becoming completely absorbed by the world, *das Man*, and the cycle of chatter/curiosity/ambiguity.
- **Three Modalities:**
 1. **Temptation:** Dasein is drawn to inauthenticity because it is easier.
 2. **Tranquilization:** The illusion of complete understanding provides a false sense of security.
 3. **Alienation:** Dasein becomes estranged from its true, authentic self, engaging in a form of self-imprisonment.

5.3 Fear vs. Anguish

How does Dasein escape this vortex of fallenness? Through **Anguish** (*Angst*).

Feature	Fear (Furcht)	Anguish (Angst)
Object	Directed toward a specific, identifiable threat (e.g., a fire, an animal).	Has no specific object. It is diffuse and indeterminate.
Reaction	Escaping away from the threat.	Confrontation with oneself. The threat comes from existence itself.
Effect on Reality	The world remains useful, we just avoid the danger.	All entities lose their significance (the "impertinence of nothing").

- **The Abyss (*Abgrund*):** In anguish, Dasein discovers that there is no solid metaphysical ground beneath it. Every choice realizes one possibility but opens the abyss of all unchosen possibilities, culminating in the ultimate cancellation of possibilities: death.
- **Recovery of the Authentic Self:** By stripping away the comforting noise of *das Man*, anguish acts as a "robbery of nothingness" that isolates Dasein. It lifts Dasein out of its fallenness, forcing it to confront its own authentic existence.

Lecture 6: 30/03/2026

6.1 Death as the Extreme Possibility of Dasein

- **The Openness of Dasein:** Unlike organisms (governed by biology) and mechanisms (governed by algorithms), Dasein is a being-able-to-be (*Können-sein*). It exists in a "space for play" (margin of openness), possessing the freedom and burden to project its own existence.
- **The Ultimate Possibility:** Dasein's totality of possibilities must include the possibility of *no longer being*. Death completes Dasein while simultaneously annihilating it.

6.1.1 The Death of Others

- **Inaccessibility:** Dasein cannot experience its own death (you only die once, and cannot reflect on it afterward).
- **Attending vs. Experiencing:** We encounter death through the death of others. However, we only *attend* to it as spectators or caretakers; we do not genuinely undergo their loss of existence. Death remains an irreducibly individual experience, where absolute substitution is impossible.

6.1.2 The Not-Yet and the End

- **Maturation vs. Death:** The maturation of a fruit is a fulfillment of a predetermined plan. Dasein's "not-yet" is fundamentally different; it is open and uncertain.
- **Cessation vs. Fulfillment:** Death does not bring Dasein to a natural "completion" like a finished work; it terminates and robs Dasein of its possibilities.
- **The Tension:** Dasein unfolds between the "not-yet" (future possibilities) and the "no-more" (death). As Heidegger notes, the moment a human is born, they are already old enough to die.

6.2 Death as a Phenomenon of Life

- **Phenomenological Scope:** Phenomenology does not ask what happens *after* death (that belongs to religion/ethics), nor does it reduce death to biological statistics.
- **Death as Imminence:** Phenomenologically, death is an intrinsic phenomenon of life—an ever-present imminence that concerns Dasein as a whole at every

moment.

6.3 Everyday Evasion of Death

- **Fleeing to Distraction:** Authentic anguish over death is rare. Normally, Dasein flees this anxiety by taking refuge in everyday distractions, entertainment, and chatter.
- **The Role of *das Man*:** Public opinion neutralizes death by treating it as something ordinary that happens to *others*. The phrase "one dies" transforms a singular, irreplaceable event into a vague, average occurrence pushed into an indeterminate future.

6.4 Anticipation and Authentic Being-toward-Death

- **Anticipation:** The only authentic way to relate to death is to await it and keep it present in thought. This restores death's proper weight, acknowledging it as the possibility of the impossibility of existence.
- **The Liberating Function of Angst:** Opening oneself to the anxiety of death has a liberating effect. It frees Dasein from possibilities imposed by others or followed merely out of conformity. The world of *das Man* loses its grip, allowing Dasein to project itself authentically based on the recognition of its own finitude.

Lecture 7: 31/03/2026

7.1 Truth and Interpretation

- **The Nature of Truth:** Asking "what is truth in general" is an unfounded question because truth is not a fixed, ready-made object or an absolute set of facts. It is dynamic, transformative, and always tied to historical context, specific questions, and human purposes.
- **Truth as Recognition:** Truth must be recognized through reflection, like seeing oneself in a mirror. There are no pure facts independent of interpretation; truth and interpretation are not opposed, but rather truth *is made of* interpretations.

7.1.2 The Myth of Truth and Lie

- **The Myth:** Truth and Lie walk to a well. Truth bathes, and Lie steals her clothes. When naked Truth emerges, people reject her, preferring the well-dressed Lie.

- **Meaning:** Seeking truth requires descending into the depths (the well). Naked truth is often scandalous and rejected, whereas a lie disguised as truth is easily accepted. Truth is not pure appearance; it tends to withdraw and remain partially hidden.

7.1.3 Aletheia: Truth as Path and Unconcealment

The Greek word for truth, *Aletheia* (ἀλήθεια), offers two etymological perspectives:

1. **Alé (footsteps) + Theia (divine):** Truth as a path to follow (like tracking fireflies in a forest), requiring a contemplative, dynamic approach without pretending to fully capture it.
2. **A (not) + letheia (hidden):** Truth as unconcealment—bringing something out of hiding. This implies an active tension between revealing and concealing (like using a flashlight in the dark).

7.2 Truth, Technology, and Transparency

- **Total Transparency:** Techno-scientific approaches push for total exposure and transparency, translating reality into data. Heidegger views this violent, absolute unveiling—which removes the veil without restoring it—as lacking care and respect (*Rücksicht/Nachsicht*).
- **Truth as a Clearing (*Lichtung*):** Instead of total illumination, Heidegger pictures truth as a clearing in a dense forest. It is a limited space where light filters through, allowing something to appear while preserving the surrounding mystery.

7.3 Transparency and Surveillance Society

- **The Digital Panopticon:** Unlike the classical Panopticon (which isolated prisoners), the digital Panopticon encourages constant communication because interaction generates data. Control is achieved through hypercommunication, and individuals voluntarily exploit themselves under the illusion of freedom.
- **From Narrative to Digital Exposure:** Traditional narratives built shared meaning and symbolic continuity. Digital stories are one-way infotainment, generating an excess of information that becomes a paralyzing "noise" rather than better understanding.
- **Fake News:** The danger of fake news is not merely that it is false, but that it is indifferent to reality, designed solely to generate addictive consumption. Generative AI worsens this by eroding our trust in the very concept of reality.

PART II: Digital Existence and Techno-Capitalism

Lecture 8: 13/04/2026

8.1 Philosophy and the Networked Human Being

- While psychology and neuroscience study specific facets of the networked human, philosophy addresses the fundamental, underlying assumptions and reconstructions of meaning that shape our digital existence.

8.2 Dasein on the Net: From Appearance to Exposure

- **Exposure vs. Appearing:** In the physical world, Dasein involuntarily appears simply by being there. Online, presence must be deliberately constructed and *exposed*. To be online means actively publicizing the private self.
- **Concealment:** Every act of online exposure implies deliberate concealment (hiding failures or flaws). The line between public and private shifts to a line between what is curated and what is hidden.

8.2.2 Performance, Projection, and Digital Identity

- **Life as Performance:** Individuals present themselves as goods on a supermarket shelf, replacing gratuitous relationships with the pursuit of attention.
- **The Altered Alter:** We do not encounter others authentically; we encounter their filtered, staged projections.
- **Project vs. Projection:** An existential *project* realizes one's own possibilities. A digital *projection* is an artificial identity staged purely for the gaze of others, driven by "comparative measurement" (admiration, envy, shame) and quantified by likes and views.
- **Immediacy vs. Instantaneity:** Lived *immediacy* (unmediated experience) is replaced by digital *instantaneity* (the rapid consumption of highly mediated content).

8.3 Reinterpreting Heidegger's Existentials in the Digital Age

8.3.1 Being-in-the-Web (*In-der-Web-sein*)

- **From Contact to Connection:** Real-world understanding comes from physical contact and embodied interaction (*Umgang*). In the digital sphere, physical touch, taste, and smell are excluded.
- **Result:** Being-in-the-web replaces embodied familiarity with a partial, distance-based connection reliant only on sight and hearing.

8.3.2 Digital Thrownness

- **The Net as Protection and Capture:** The network acts as a protective net (e.g., maintaining social ties during a pandemic) but also as a device of capture (fishing metaphor).
- **Digital Prey:** Corporations use psychological triggers (anger, pity, amusement) as "clickbait" to capture attention, exploiting users who continuously surrender data.

8.4 Time, Space, and Identity in the Digital Condition

- **Fragmented Time:** Duration is eroded into a succession of isolated, disconnected instants.
- **Flattened Space:** The digital platform ("flat-form") neutralizes rootedness, making physical space irrelevant compared to online visibility.
- **Fragmented Identities:** Dasein splits into multiple fluid profiles dispersed in "digital swarms".
- **Dromocracy (The Power of Speed):** We shift from a democracy to a *dromocracy* (from *dromos*, speed). Accelerated living attempts to overcome human limits by rapidly consuming empty intervals, discouraging any contemplative lingering.
- **Loss of Authentic Relation:** Deprived of genuine empathy, physical presence, and the existential weight of death, the digital individual lives in a ubiquitous, deterritorialized panopticon.

Lecture 9: 14/04/2026

9.1 The Digital as an Alterative Culture

- **An Alterative Reality:** The digital dimension is not merely an alternative medium; it is *alterative*, meaning it modifies the fundamental structures of human existence (time, space, identity, and alterity).
- **Culture and Cult:** The word "culture" derives from "cult" (*re-ligio*, meaning to bind or connect). Digital culture acts as a system that binds individuals

through shared symbols, practices, and meanings.

9.2 From Archetype to Stereotype: Three Models of Society

Historically, civilization has transitioned through three societal models based on values:

1. **Society of the Archetype** (*Arche* = origin/principle):
Traditional/medieval societies founded on a transcendent principle (God) where humans rely on divine providence and an external higher order.
2. **Society of the Prototype** (*Protos* = first): Following Nietzsche's declaration that "God is dead" (1882), humans became their own first principle and creators. The contemplative gaze was replaced by a manipulative, technological one. Without divine limits, the dominant value became the constant *overcoming* of limits, making ethics a struggle defined by humans.
3. **Society of the Stereotype** (*Stereos* = rigid + *typos* = image): The contemporary digital model. It reduces dynamic human complexity into rigid, simplified images or profiles. It operates through the massive diffusion of repetitive, standardized data rather than deep truth. To exist online, one must conform their identity to these flattened, rigid structures.

9.3 From Community to Digital Swarms

Human aggregation takes distinct forms:

- **Community:** Derives from *cum munia* (gifts). Based on gratuity, proximity, and deep, enduring bonds.
- **Society:** Held together by shared interests, norms, and roles, rather than deep emotional bonds.
- **Mass:** An undifferentiated group acting as one, bound by physical co-presence (e.g., a protest) but lacking deep, enduring continuity.
- **Digital Swarms:** The digital aggregation model. Unlike communities (no deep bonds), societies (no stable interests), and masses (no physical presence), swarms are held together by fragile, fleeting preferences. They seek to eliminate negativity (resistance, opposition, limits) to create a comforting, illusionary space.

9.4 Alterity and the Disappearance of the Other

- **The Disembodied Other:** Online, we encounter projections rather than authentic others.
- **The Elimination of Conflict:** True identity is built through resistance and opposition. In the digital sphere, when the "other" challenges us, we can simply block, delete, or mute them. Without this resistance, the ego expands into stagnation, surrounded only by a reassuring "sameness".
- **The Echo Chamber:** Dialogue degrades because genuine listening (*hören*, which implies belonging) is replaced by the echo of one's own voice.

9.5 Identity, Image, and Homo Digitalis

- **Promethean Shame:** The feeling of inferiority humans experience when comparing their flawed real lives to their own perfect, curated digital creations and filters.
- **The Selfie and Retractus:** Traditional portraits required a withdrawal (*retractus*) for inward reflection. Digital selfies fuse the subject and photographer, producing a hyper-real product designed purely for external exposure and recognition.
- **Centrifugal Media:** Traditional mass media (TV/radio) was amphitheatrical, focusing the public on shared issues. Digital media is centrifugal, fragmenting the public into isolated individuals focused only on personal preferences, resulting in continuous distraction and superficial "infotainment".

Lecture 10: 20/04/2026

10.1 *Umgang* and the Primacy of Meaningful Interaction

- ***Umgang*:** Heidegger's concept for the active exchange of meaning and familiarization with the world and others. It is not a cognitive/scientific measurement, but an embodied, practical interaction.
- **Alteration through Alterity:** Identity is formed by encountering what is radically *other* (alterity), which generates wonder and disorientation.

10.2 Technocapitalism and the Logic of Performance

- **Technocapitalism:** The ultimate fusion of technology, economy, and science.
- **The Law of Self-Implementation:** Technology follows a strictly performative logic aimed at maximizing efficiency. It systematically eliminates

anything "dysfunctional"—including human error, doubt, hesitation, ethics, and emotions.

- **Voracity:** Time becomes a consumable resource, pushing existence into a state of relentless optimization and acceleration, threatening slow systems like democracy and justice.

10.3 Information, Transparency, and the Crisis of Truth

- **Infonoise:** Transparency translates everything into machine-readable information. Unlike narrative (which weaves meaning), information is rapid, contextless, and accumulates into an indistinct background noise that paralyzes judgment.
- **Truth vs. Transparency:** Transparency demands blinding, total exposure. Truth, however, acts as a clearing (*Lichtung*)—a partial illumination that preserves mystery and the tension between revealing and concealing.

10.4 Digital Identity and the Commodification of the Self

- **Exhibition over Existence:** Online, existing requires becoming "showy". Identity transforms into a commodity displayed like goods on a shelf.
- **Simulated Authenticity:** Digital culture rewards a strategic, manufactured authenticity to generate empathy and commercial engagement.
- **Monetizing Vulnerability:**
 - *Sharenting:* Commodifying children's lives for mass consumption.
 - *Compassion/Pain Capitalism:* Normalizing and exposing suffering, vulnerability, and grief for profit, clicks, and attention.
- **Hyper-invaded Solitude:** The paradox of being constantly connected yet entirely isolated, forming anonymous swarms driven by individual consumer desires rather than shared ideologies.

10.5 From Possession to Access

- **The Shift:** We increasingly seek temporary access (sharing economies, streaming) over permanent possession.
- **Loss of Memory:** Possession (*recordari* - to bring back together) connects us to our past and confers symbolic, inestimable value onto objects. Access logic

discards the past for constant novelty, flattening symbolic value into a universal exchange price.

10.6 Digital Objects and the Loss of World

- **Commodification of the Immaterial:** Industrial capitalism commodified matter; technocapitalism commodifies data, identities, and experiences.
- **The Absence of Resistance:** Physical objects (*ob-iacere*) stand against us, providing healthy resistance. Digital objects (narcissistic objects like smartphones) are smooth and frictionless, discouraging deep tactile engagement.
- **Zufingerheit:** A new Heideggerian category. Reality is no longer ready-to-hand (*Zuhandenheit*), but merely "at the reach of the finger" (*Zufingerheit*). We lose our senses and manual creativity, interacting with the world through minimal, repetitive tapping.

Lecture 11: 21/04/2026

11.1 Digital Life as Performance

- **The Anthropological Shift:** While the internet facilitates connection, intense social media use correlates with rising cognitive, mental, behavioral, and emotional disorders (e.g., eating disorders, suicidal tendencies).
- **The Pandemic Catalyst:** Lockdown isolation accelerated the blurring of private/public boundaries. Deprived of physical "being-with-others," individuals used digital networks as a survival tool to compensate for the lack of contact.
- **Life as Theatrical Staging:** Online existence is not life as lived, but a representation. Individuals act as directors, actors, and producers of their own constructed roles, controlling what to conceal and what to show.
- **Emotional Distance:** Experiences of suffering and grief are transformed into fragmented content for strangers. Paradoxically, the overexposure of suffering dulls our capacity to be affected by it, replacing genuine empathy with indifference.

11.2 Attention, Recognition, and Self-Commodification

- **Commodification of Fragility:** Capitalism converts every aspect of existence into merchandise, including the vulnerabilities of children, the sick, and the disabled.

- **The Attention Economy:** Social networks are not neutral; they are designed to capture and retain attention to deliver targeted content (using a bellic/strategic logic of the "target").
- **The Loss of Alterity:** Shielded from genuine, disruptive otherness inside digital bubbles, individuals lose critical and dialogical capacities, leading to polarized thinking and identity radicalization.

11.3 Techno-Capitalism and the Personal Brand

- **The Collapse of the Master/Slave Dialectic:** In techno-capitalism, the individual is simultaneously master and slave, employer and worker of themselves. Exploitation is redirected inward as "self-exploitation," disguised as freedom, ambition, and personal branding.
- **Performative Value:** Individuals curate personal brands to attract specific audiences. Value shifts from intrinsic essence to performative visibility negotiated through metrics like likes and shares.

11.4 From Social Feedback to Algorithmic Visibility

- **The Genesis of Social Engineering:** Mark Zuckerberg's 2003 "Hot or Not" site revealed humanity's vulnerable desire to be seen and evaluated, setting the stage for social feedback loops.
- **Intermittent Reward:** Notifications and likes trigger dopamine through unpredictable rewards, reinforcing repetitive behavior.
- **The User as Product:** Users generate data that trains platforms to refine targeting strategies. The data is sold to advertisers, making the user the product, not the customer.
- **Visual Culture & Influencers:** Instagram marked the shift to a visual culture. Influencers must balance market standards with a strategically constructed "authenticity," embedding advertising invisibly within everyday storytelling.
- **Algorithmic Bias:** Algorithmic feeds reorganize content to maximize engagement time, inherently reinforcing socio-economic privilege, amplifying stereotypes, and forcing creators to internalize algorithmic logic.

11.5 Fake Authenticity and the Serialization of Feelings

- **The TikTok Paradigm:** Content shifted to fast, informal, and seemingly spontaneous videos. However, this is "fake authenticity" responding to a market demand for relatable, raw, and even desperate content.

- **Serialization of Emotion:** Deeply complex emotions (grief, joy, pain) are standardized and formatted for rapid consumption, stripping them of their singular intensity.
- **Spectacle over Participation:** Platforms reward extreme or emotionally manipulative content, replacing ethical involvement with passive consumption and attention.

11.6 Anomic Digital Space and New Forms of Exploitation

- **Anomy:** The digital environment is an *anomic* space (without law)—a partially regulated realm lacking sufficient ethical and social frameworks to protect exposed individuals.

11.7 Sharenting

- **Definition:** The systematic exposure of minors online by parents.
- **Risks:** Children's images are vulnerable to illicit networks. Furthermore, algorithms incentivize parents to reproduce privacy-invading content to maximize engagement.
- **Commodification of Childhood:** Childhood is turned into a permanent reality show and a form of unconsented labor. It creates a "secondary contentification" where the child inherits a public digital double they never agreed to.

11.8 Compassion Capitalism

- **Misery Shows:** The spectacularization of poverty, disability, and illness. Disadvantaged individuals receive aid in exchange for narrating tragedies, creating voyeuristic entertainment.
- **Self-Promotional Generosity:** Philanthropic creators stage charitable acts to maximize their own visibility and profit. Authentic generosity is disinterested; compassion capitalism embeds care within a strategy of economic return.

11.9 Pain Capitalism

- **Narrating Suffering:** Profiles center their identity around pain (e.g., the loss of a loved one) to justify their online presence, often claiming to offer a "pedagogical" experience.

- **Commodification of Support:** Emotional assistance and listening become paid services.
- **The Paradox:** Sharing suffering online aims to alleviate it but risks amplifying it, trapping individuals in cycles of ephemeral validation and visibility rather than genuine healing.

Lecture 12: 27/04/2026

12.1 Logos and Forms of Intelligence

To understand the transformation of *logos* (language/discourse/reason) in the digital age, we must distinguish three forms of intelligence:

1. **Natural Intelligence (NI):** Governed by rigid, fixed biological programs oriented toward survival.
 2. **Artificial Intelligence (AI):** Governed by structured, predefined mechanical programs. Machines lack an understanding of life/death and only simulate intelligence.
 3. **Human Intelligence (HI):** Governed by *projects* rather than programs. HI is flexible, interpretive, and situated.
- **The Intersection:** Humans share biology with NI and language/logos with AI.

12.2 Language, Ambiguity and Interpretation

- **Numerical vs. Symbolic:** Numerical programming language is formal and univocal. Human symbolic language is filled with meanings and interpretations.
- **Ambiguity is Essential:** Ambiguity is not a defect of human language; it is the condition that preserves its openness and meaning.
- **Text vs. Context:** Machines process *text* to eliminate ambiguity; humans interpret *context* to grasp the deeper sense (*sensus*) of the situation.

12.3 Human vs Machine Dialogue

- **Saying:** Machines can pair signs with meanings efficiently, but cannot produce truly original, context-dependent poetry or humor.
- **Listening:** Machines mechanically "hear" and record. Humans genuinely "listen" (*hören*), which implies a shared existential condition of belonging (*gehören*).

- **Answering:** A machine generates a "reply" (a re-play of predefined patterns). A human gives an "answer" based on listening, interpretation, and engagement with the other's singularity.

12.4 Digital Discourse and Interaction

- **Broadcasting vs. Interactivity:** Traditional media was monological (one-way broadcasting). The web appears interactive, but this interaction must be scrutinized.
- **From *Handlung* to *Fingerlung*:** True action (*Handlung*, connected to the hands) implies creating, handling, and encountering resistance. Digital interaction is reduced to *Fingerlung* (tapping, clicking with a finger)—a minimal gesture devoid of material opposition.
- **Contraction of Freedom:** Freedom is reduced from creating something new to merely selecting from pre-given, consumable options (*Zufingerheit* instead of *Zuhandenheit*).

12.5 Roots of the Transformation

- **Care vs. Domination:** The religious/cultural roots of Western thought present a choice: treating the world as something to dominate (exploitation) or something entrusted to us for care (responsibility). Techno-capitalism radicalizes the domination model.
- **Digital Totalitarianism & Infocracy:** A new power structure that does not use violence, but influence. It creates dependency by lightening human burdens and replacing human decision-making. "Psychopolitics" guides behavior below conscious awareness by exploiting emotional capital.

12.6 Information and Temporality

- **Information vs. Narrative:** Information is tied to novelty and lacks the capacity to endure or build coherent meaning.
- **Fragmented Time:** Continuous narrative collapses into disconnected, hyper-accelerated instants. The urgency of the present prevents humans from dwelling, reflecting, and understanding.

12.7 Dromocracy and Political Crisis

- **Speed Over Deliberation:** Dromocracy (power of speed) replaces democracy (power of the people). Long-term reasoning is crushed by the demand for

immediate, optimized solutions.

- **Political Profiling:** Trolls and social bots artificially amplify narratives. Voters are fed "dark ads" optimized via micro-targeting to confirm pre-existing beliefs, destroying nuance and causing radical polarization (a binary 0 or 1 logic).
- **Post-Truth:** The distinction blurs between the *true* and the *plausible* (*verosimile*). Fake news does not aim to establish truth but to flood the space with noise, doubt, and conflicting interpretations (damage control by saturation). Fake news is information, and information moves faster than truth.
- **Memes:** They rely on rapid visual consumption and simplistic structures, replacing critical argumentative discourse with mere impression and emotional reaction.
- **The Incompatibility of Justice and Virality:** Justice and democracy are inherently slow systems built on compromise, dialogue, and interpretation. They cannot survive the structural speed and virality of digital information.

Lecture 13: 28/04/2026

13.1 Silence and Hypercommunication

- **The Power of Silence:** Communication is not just verbal expression; silence is a "defective mode of discourse" that carries deep, essential meaning.
- **The Sacred and Listening:** In sacred rites, silence is required to enable genuine listening. The digital age, however, is a "desacralized age" driven by a compulsion to communicate, flooding spaces with noise, idle talk, and curiosity. This hypercommunication saturates our attention and destroys the capacity to truly listen to others and to the "voice of conscience".
- **Silence and Contemplation:** Silence requires withdrawal, opening the space for contemplation, imagination, and the ability to transcend oneself to build a true existential "project". Constant digital exposure destroys this, replacing imagination with "pornography" (the total exposure of what should remain hidden).
- **De-distancing and Hyperactivity:** The network abolishes distance, making everything immediately available to the finger (*Fingerlung*). This is not a genuine approach to reality, but a removal of limits to satisfy consumer desires. True freedom includes "negative freedom" (the power *not* to do/expose oneself); without it, we fall into a noisy, attention-destroying hyperactivity.

13.2 The Digital Graphic Revolution

- **From Alphabetic Writing to Computation:** The Greeks added vowels to the Phoenician consonantal alphabet, allowing text to be read and vocalized without necessarily understanding the meaning. This separation paved the way for mechanization.
- **Computational Writing:** Digital writing introduces a radical graphic revolution. It separates hardware from meaning and relies on combinatoric, automated numerical procedures. Above all, it is *mute*—it does not register a pre-existing reality through language, but operates on mute material, challenging the historical monopoly of textual writing (especially in law).

13.3 Digital Codification and Data

- **Homogenization:** Digitalization codifies physical reality into discrete numerical sequences. It forces radically diverse phenomena (a child's face, a constitution, a song) into a homogeneous arithmetic format, stripping away direct perception and human language.
- **Opacity and Algorithmic Power:** Computational processing is so fast and complex (using binary code) that it is effectively illegible to users. This opacity creates a new class of "private legislators"—software engineers who formulate societal rules through inaccessible mathematical calculations rather than transparent, democratic legal reasoning.

13.4 Big Data and De-symbolization

- **Statistical Aggregation:** The network aggregates vast amounts of data to find correlations and predict behavior, giving the illusion that the world can "speak for itself" without human interpretation.
- **De-symbolization:** Human language binds communities together through "symbolic efficacy" (the power to evoke meaning and interpretation). Computational language is mute, uninterpretable, and lacks this evocative power, threatening to dissolve the shared symbolic horizon of society.

13.5 Language, Ritual, and Law

- **Expressive and Performative Power:** Law relies on text embedded in ritual. Performative legal acts (e.g., passing a sentence, marrying) require a symbolic place, authority, and bodily presence to be valid. Text without its ritual context loses its force.
- **Ritual Repetition vs. Computational Iteration:**

- **Computational Iteration:** The mechanical, blind reproduction of predefined operations (the logic of the stereotype).
- **Ritual Repetition:** A symbolic act that sublimates violence, resolves conflicts, and brings the unknown back into a manageable collective framework.
- **The Threat to Law:** Digital technique tries to redefine law by claiming that legal rituals are merely inefficient folklore, attempting to replace symbolic human reasoning with purely objective calculation.

Lecture 14: 04/05/2026

14.1 From Digital Existence to Technocratic Capitalism

- We transition from analyzing the digital environment to examining the economic and cultural roots of "technocratic capitalism," digging into the ideological nourishment that sustains it.

14.2 Capitalism as a Religious Phenomenon

- **Homo Economicus and Sacrifice:** The economic mindset is older than economic science; it is rooted in archaic religion. Sacrifice was the first economic exchange (primitive man as merchant, God as creditor) used to manipulate divine will.
- **Exchange vs. Grace:** Sacrifice belongs to the register of economic exchange (seeking a return), whereas the Christian concept of *grace* belongs to the horizon of absolute gratuity (free gift).
- **Walter Benjamin's View:** Benjamin defined capitalism as an extreme religious cult. It has three traits: it is pure cult (practice over dogma), it has permanent duration (24/7, no sacred pauses), and it generates universal guilt and debt instead of offering remission.

14.3 Managerial Ideology as the Religion of Globalization

- **The New Religion:** Managerial ideology operates globally through business schools, presenting itself as a neutral, universal technique to hide its true ideological nature. Its core dogmas are meritocracy and incentive.
- **Absorption of Critique:** Capitalism sustains itself by consuming its critics, transforming opposition into marketing or networking strategies.

- **Burnout:** Corporations treat burnout not as a systemic failure, but as a normal stage of a managerial career, constantly reintegrating recovered workers back into the same toxic, pathological culture.

14.4 The Stolen Gift and Corporate Devotion

- **The Paradox of Corporate Language:** Corporations officially prohibit mixing personal emotions with business, yet they recruit and motivate workers using deeply religious and familial terms (passion, vocation, sacrifice, loyalty).
- **The Stolen Gift:** Companies demand the existential devotion of the worker (their soul, time, identity) but refuse to recognize this as a free "gift," instead absorbing it back into the cold logic of a contractual obligation.
- **The Narcissistic Contract:** A young worker and the company initially reflect ideal images of each other. Eventually, the worker's unacknowledged emotional investments accumulate as unpaid credits. The contract shatters into frustration and burnout, at which point the company simply replaces the exhausted worker with a new recruit (a cycle mirroring ancient pagan sacrifice).

14.5 Meritocracy as the Ethical Legitimation of Inequality

- **The Aristocracy of Our Age:** The 20th century fought natural inequality (via welfare, public education), but contemporary capitalism launched a counterrevolution by turning inequality into a moral virtue called "meritocracy". It justifies oligarchic privilege by claiming rewards are based purely on merit.
- **From Talent to Measurable Performance:** Meritocracy falsely equates innate talent (which is an unearned product of "thrownness" and luck) with merit. It flattens the vast plurality of human qualities, rewarding only measurable, quantifiable performances while destroying relational virtues like humility, compassion, and gratuity.
- **Demerit and Guilt:** Before it is a theory of merit, meritocracy is a theory of demerit. It implicitly blames the poor and marginalized for their own condition, transforming structural inequality into an individual moral failure and making social indifference ethically acceptable.

Lecture 15: 05/05/2026

15.1 Sacrifice as the Dark Side of Merit

- **Sacrifice vs. Grace:** In archaic pagan societies, sacrifice was an economic exchange used to influence the divine for human benefit. The biblical prophets criticized this, promoting a salvation founded on *grace* (gratuity) rather than exchange.
- **The Holocaust:** The perfect archaic sacrifice (*holos* = all, *kaustos* = burned) destroyed the offering completely so nothing remained for humans, representing pure economic exchange with the divine. Christianity attempted to replace this logic of merit, debt, and exchange with absolute gratuitousness, though humans constantly regress to the logic of calculation.

15.2 Corporate Sacrifice and the New Sacred

- **The Cult of Youth:** Modern corporations imitate religion (using coaches as spiritual guides and demanding "vocation"), while demonizing old age (viewed as consumed and useless) and worshipping youth to consume it sacrificially.
- **Exploitation as Voluntary Gift:** Contemporary capitalism masks the excess of sacrifice by presenting it not as exploitation, but as a "voluntary gift" or meaningful act of devotion to the corporation. Those who refuse (e.g., maintaining work-life boundaries) are made to feel guilty or inadequate.
- **Sacrifice as Debt:** The corporation acts as the idol/creditor; it never sacrifices itself for the worker. It demands the living sacrifice of the worker's youth and time, offering mere money in return, and will ruthlessly dismiss workers when market conditions change.

15.3 Present, Gift, and Gratuity

- **Present (*Regalo*) vs. Gift (*Dono*):** A *regalo* derives from *rex* (king) and implies offering something to power to gain favor or privileges; it expects a return. A true *dono* (gift) is purely gratuitous and does not demand reciprocity.
- **The Taboo of Capitalism:** Authentic gratuity is the greatest taboo of capitalism. Because a free gift is unmeasurable, uncontrollable, and non-calculable, its free circulation would destabilize the capitalist logic of exchange and calculation.

15.4 Taboo, Hierarchy, and the Market

- **The Death of the Gift:** Pre-market communities operated on both hierarchy (regulating power) and gift (regulating reciprocity). The market emerged precisely by eliminating the gift. Consequently, the death of the gift only

strengthened hierarchies (such as firms and armies), making corporate "flat organizations" largely an illusion.

15.5 The Homeopathic Gift

- **Immunization:** To protect itself against the subversive, unpredictable power of true gratuity, capitalism introduces miniature, controlled doses of it—a "homeopathic gift".
- **Corporate Philanthropy:** Tactics like corporate volunteer days, gadgets, discounts, or donating tiny fractions of profits act as substitutes for real generosity. These controlled acts neutralize the threat of authentic, unregulated gratuity, ensuring workers and consumers remain bound to the economic contract and hierarchical control.

15.6 The Survival of Community Through Gratuity

- Authentic gratuity demands equality, reciprocity, and vulnerability, which makes hierarchy fragile. Despite capitalism's attempts to forbid or control these bonds, true communities survive because individuals continue to offer one another free, unmeasurable, and gratuitous gifts outside of economic calculation.

Lecture 16: 11/05/2026

16.1 From Community to Consumption

- **Techno-Capitalism's Leveling:** Historically, Mediterranean capitalism (Catholic) was community-oriented, while Anglo-Saxon capitalism (Protestant) was individual-oriented. Techno-capitalism erases these distinctions, monetizing every dimension of existence (success, suffering, identity) and replacing spiritual spaces with commercial hypermarkets.

16.2 From Labor to Consumption

- **The Devaluation of Labor:** Work is historically linked to suffering (the word *labor* shares roots with *tripalium*, an instrument of torture). Today, labor is removed from visibility, and the core figure of the economy shifts from the worker/producer to the consumer. Speculative finance exemplifies this by generating wealth entirely detached from production.
- **The Loss of Community:** Labor is an inherently collective activity (as noted in Article 1 of the Italian Constitution), whereas consumption is individual and

solitary.

- **Online Consumption:** Traditional markets were places of encounter and dialogue (linked to Hermes, the god of merchants and hermeneutics). Digital consumption empties the market of people, promising total accommodation without effort, negotiation, or waiting.
- **Desire and Gambling:** *Considerare* meant aligning with the stars (destiny), whereas *desiderare* (*de-sidera*) means detaching from the stars to project new possibilities. Modern gambling (slot machines, digital betting) replaces the shared, social rituals of traditional games with "narcissistic" or "autistic" interaction, where the isolated individual is consumed by the machine.

16.3 Consumption as Idolatry

- **The New Idolatry:** Our age is not purely religious nor strictly atheist; it is an age of idolatry where consumption is the new sacred ideal.
- **Status Shift:** Idolatrous systems despise labor and glorify consumption. Privilege is no longer just owning goods, but possessing the free time to consume unproductively. Work loses its constitutional dignity and becomes something that diminishes social prestige.

16.4 Capitalism and the Consumption of Community

- **Marketization of Care:** Capitalism dismantles communal bonds and sells them back as paid services. For example, the family activities of childcare and emotional support become monetized, turning caregivers into "sellers of care".
- **Consumer Totems:** The market creates aggregations of isolated individuals who gather not around shared values, but around commodities (e.g., Harley-Davidson, influencers). The profits of these "market communities" go to platform owners, not the community itself.

16.5 Narrative Marketing and Post-Scarcity

- **Post-Scarcity:** A condition where goods are no longer rare. *Copia* means both abundance and duplication (the society of the stereotype).
- **Storytelling and Enchantment:** In post-scarcity, selling the technical quality of a product is not enough. Brands must sell stories, identities, and dreams to activate desires.
- **Incantare:** This Italian word means both to enchant/mesmerize and to get stuck/immobilized (like a broken record). Modern marketing enchants consumers to immobilize them in repetitive cycles of consumption. Unlike

traditional religious or family myths rooted in free transmission, corporate storytelling manipulates emotions purely to drive purchasing, lacking the liberating gratuity of true myth.

Lecture 17: 12/05/2026

17.1 Care, Celebration, and Gift

- **The Two Axes:** Human life and spiritual experience are balanced on the axes of *care* and *celebration* (festa). There is no authentic celebration without care, and no care without celebration.
- **The Capitalist Threat:** Contemporary capitalism attempts to replace gratuitous, relational celebration with purchasable, market-oriented entertainment.

17.2 Care and the Temporality of Gift

- **Care vs. Manipulation:** As noted with Heidegger's existentials, we take care of objects (manipulation), but we *have care* for people (*Fürsorge*). Authentic care respects the other's alterity, approaching them not as an object but as a presence.
- **Suspended Time:** The word *temple* (tempio) and *time* (tempo) are linked. Care requires the suspended, non-productive time found in contemplation (like Heidegger's *Lichtung*, the clearing in the forest).
- **The Necessity of Slowness:** Care cannot exist within the fragmented, accelerated temporality of the business world; it requires slowness, competence, and gratuitous dedication.

17.3 Gift, Duty, and Domestic Care

- **Public Gifts:** Historically, public gifts (*regalo*, from *rex*/king) were offered to power to gain prestige, honor, and reciprocity. This sphere was predominantly male.
- **Domestic Gifts:** Inside the home, the immense gifts of time and care (predominantly female) were not recognized as free gifts, but were culturally interpreted as natural obligations and subordinate duties. This non-recognition was the first great form of female subordination.
- **The Symbolic Salary:** The entry of women into the salaried workforce in the 20th century was vital because the paycheck offered the symbolic reciprocity, dignity, and honor previously denied to domestic care.

17.4 Care Work and Market Logic

- **The Devaluation of Care:** Professions like nursing, teaching, and domestic work are systematically underpaid because they are still symbolically associated with subordinate duty rather than prestige.
- **Market Logic vs. Care Logic:**
 - In the economy: Value increases when the time required decreases ("time is money").
 - In care: Value *increases* the more time is invested ("time is gift"). Authentic care demands duration, patience, and presence, all of which are destroyed by the urgent productivity culture of modern management.

17.5 Celebration Against Entertainment

- **Entertainment:** A product that can be bought, consumed individually, and organized by the market.
- **Celebration (Festa):** A co-created, shared reality rooted in gratuitousness. It is inefficient and wasteful by market standards, which is why capitalism tries to replace it with entertainment.
- **The Balance:** "La festa è amica del lavoro" (Celebration is the friend of labor). Celebration gives rhythm and meaning to work; without it, Sunday feels indistinguishable from Monday.

17.6 Sunday, Rest, and the Ethics of Limitation

- **Domenica (The Lord's Day):** Derives from *Dominus*. Sacred time interrupts productive time, reminding humans they are guests in the world, not absolute masters.
- **The Fallow Field (*Il Muggese*):** The ancient practice of resting the land to restore fertility translates to an existential rule: one may work, but not indefinitely.
- **Non-Ownership:** The seventh day suspends property and hierarchy. Part of the land must remain uncultivated and available for strangers, animals, and the earth itself. Forgetting this limitation leads to planetary devastation.

17.7 Corporate Celebration and the Crisis of Symbolic Capital

- **Instrumental Celebrations:** Corporations try to mimic celebrations (conventions, corporate events) to build solidarity, but these fail because they

are instrumental and lack true gratuity.

- **Nostalgia and Utopia:** Humans retain a deep nostalgia for authentic communal bonds. *Utopia* carries an ambiguity: it can mean *eu-topos* (the good place) or *ou-topos* (no place), leaving the question open as to whether a society free from profit logic is an impossible dream or a achievable destination.

Lecture 18: 18/05/2026

18.1 The AI Act and the Regulation of Artificial Intelligence

- **Democratic Law in a Democratic Context:** Proposed in April 2021, approved in April 2024, and entering full force in August 2026, the AI Act highlights the struggle of slow democratic law trying to regulate hyper-accelerated technology.
- **Geopolitics:** "The US invents, China produces, and Europe legislates." The EU positioned itself as the global pioneer in AI regulation, enforcing compliance for any system operating in the European market.

18.2 Objectives and Digital Materiality

- **Goals:** To create a homogeneous legal framework, prevent market fragmentation across the 27 member states, contain Big Tech oligopolies, and protect human rights (anthropocentric AI).
- **The Materiality of Digital Tech:** AI is incredibly physical—requiring rare metals, immense energy for data centers, and massive computational cooling systems. The AI Act introduces environmental sustainability to prevent technological growth from destroying the ecological resources it depends on, guarding against mere "greenwashing".

18.3 The Juridical Structure

- **Regulation vs. Directive:** The AI Act is a *Regulation*, meaning it applies automatically and uniformly across all member states upon taking effect, unlike a Directive which requires national legislation to implement.
- **Trilogue:** It was negotiated via an informal inter-institutional compromise between the European Parliament, Commission, and Council.
- **AI Pact:** A voluntary adherence framework allowing companies to align with the rules before August 2026.

18.4 The Risk-Based Approach

The AI Act classifies systems by risk (unacceptable, high, limited, minimal) focusing on the *application* of the technology, not the intrinsic technology itself.

18.4.1 Prohibited Practices (Unacceptable Risk)

- Biometric categorization of sensitive data (politics, religion, race).
- Untargeted scraping of facial images from the internet to create recognition databases.
- Emotion recognition AI in workplaces and educational environments.
- **Social Scoring:** Banned to prevent the manipulation of citizens via behavioral profiling (e.g., tying digital interactions to credit access or freedom of movement).

18.5 Predictive Policing and Biometric Surveillance

- **Real-Time Biometric Recognition:** Banned for law enforcement, with narrow exceptions (imminent terror threats, locating suspects/victims of serious crimes). This introduces the danger of ambiguous language—who defines a "serious crime" or a "suspect"?
- **Predictive Policing:** Systems cannot target specific, identified individuals. They may be used preventively (e.g., analyzing anonymous data for "hot zones" at protests), requiring ex-ante authorization to prevent mass surveillance from destroying political freedom.

18.6 High-Risk AI Systems

Applied in sensitive sectors (healthcare, transport, justice).

- **Human Oversight:** Humans must retain decision-making power because humans experience ethical hesitation and responsibility.
 - *Stanislav Petrov Case:* A human saved the world by doubting a false Soviet AI nuclear alarm.
 - *Smiler Roller Coaster Case:* Human engineers bypassed a correct AI safety alarm, causing tragedy.
 - *The Paradox:* Both algorithms and humans are fallible, creating a profound juridical debate over who holds final authority.
- **Transparency:** AI generated manipulation (e.g., political deepfakes) requires a proactive risk-prevention approach and mandatory user-disclosure (limited risk

obligation).

18.7 General Purpose AI (GPAI) Systems

- **Classification:** Regulated based on computational power (FLOPS) rather than revenue. Systems exceeding roughly 10^{25} FLOPS (like ChatGPT or Gemini) are "high-impact" and face strict obligations for risk mitigation and incident reporting.
- **Regulatory Sandboxes:** Experimental environments where researchers can test AI under relaxed rules to foster innovation while gradually preparing for compliance.

18.8 Sanctions and The Problem of Profit

- **Fines:** Punishments follow the principle of proportionality. Prohibited practices incur fines up to €35 million or 7% of global turnover; non-compliance incurs up to €15 million or 3%.
- **The Operational Cost Problem:** Like environmental crimes, mega-corporations might simply absorb these massive fines as "operational costs" if the unlawful practice yields a higher profit than the penalty.
- **Military Exclusion:** Military AI is substantially excluded from the AI Act, raising severe ethical questions about protecting human rights while weapons systems remain unregulated.

Questions

1. **Logos and Nomos** Logos means "word" or "discourse," and nomos refers to "law." The two are deeply connected: laws are made of words, and language follows rules that are themselves a kind of law. In any legal context, especially trials, the central role of language becomes clear. For justice to occur, there must be a dialogic space where people listen to one another—where speaking and hearing alternate respectfully. AI technologies, particularly in legal settings like the Estonian "robo-judge," challenge this paradigm. While algorithms can collect data, they cannot listen in a truly human sense. A human judge, unlike a machine, shares the same existential condition as those they judge. They know what it means to suffer, to have a life trajectory, to bear the moral weight of a decision. A machine, by contrast, operates through technical

processes without this ethical dimension. Law becomes pure technique when detached from the human word.

2. **Legality and Justice** Legality concerns the formal validity of a law—whether it follows the correct procedures. Justice, however, refers to the ethical aspirations behind law: equality, fairness, and the right to be heard. The Nazi regime's legal system was perfectly legal, yet deeply unjust. This shows that legality can exist without justice. In contemporary society, justice should imply openness, participation, and non-discrimination. The risk with modern technological systems is that they uphold legality while hollowing out the spirit of justice.
3. **Dialogue and Monologue** Dialogue is an exchange where both parties engage reciprocally, learning and shaping meaning together. It reflects a fundamental legal principle: the hearing of both sides. A monologue, on the other hand, is one-directional and lacks mutual recognition. In legal and philosophical terms, dialogue creates the conditions for justice and understanding, whereas monologue imposes a single truth or authority, silencing the other. Law as dialogue builds shared meaning; law as monologue enforces conformity.
4. **Power and Democracy** In democratic societies, power ideally comes from collective agreement—what the Greeks called *demos-kratos*, the power of the people. But new technologies shift this dynamic. Power becomes internalized, embedded in habits and invisible routines. Instead of coercion by force (e.g., the king's sword), we are persuaded and conditioned to act in certain ways. This makes power harder to resist because we no longer perceive it as external. It's embedded in platforms, interfaces, and everyday practices.
5. **Artificial and Human Intelligence** Human intelligence is shaped by existential purpose. We act not only to achieve measurable outcomes, but sometimes to sacrifice, to resist, to create meaning—even irrationally. Artificial intelligence lacks this capacity; it cannot desire, suffer, or aim beyond programmed goals. This makes human intelligence unique: it is projective, value-driven, and capable of acting against biological or utilitarian interest. We are not simply living beings, but existents—oriented toward meaning.
6. **Interpretation and Objectivity** All knowledge is mediated by language, and thus by interpretation. There is no absolute, neutral access to truth. Every fact is already "dressed" in a form of language, ideology, or perspective. Objectivity, in this view, is a myth. Law is interpretative by nature: different perspectives on the same event can all be valid in their own terms. Truth is relational and situated—not singular or fixed.

7. **Human Rights and Rule of Law** Technological platforms increasingly threaten human rights, especially for vulnerable populations—children, the disabled, the poor. These groups are often exploited in opaque systems that lack accountability. Moreover, even those with relative power are complicit in their own exploitation: we become both masters and slaves in digital systems, subject to surveillance and self-commodification. The legal framework meant to protect rights is often bypassed or reshaped by corporate and algorithmic power.
8. **Nullus Homo (No One Is Alone)** Human beings are relational creatures: we come into ourselves only through interaction with others. No one becomes a full human being in isolation. Language, thought, and identity all arise from dialogue and care. This foundational interdependence is essential for ethical and legal life. Without recognition and reciprocity, human development is stunted. Law presupposes this relational basis.
9. **Thirdness of Law and Machine Impartiality** A human judge is meant to be a "third" party—neutral and not emotionally invested in either litigant. But since they are human, complete impartiality is never fully achievable. Still, judges strive toward it through ethical effort. Machines, by contrast, are "impartial" by default—but their disinterest is of a different kind. They lack emotional capacity not by virtue of ethical discipline, but because they are non-human. This kind of neutrality risks detachment from the human condition and from the moral weight of legal judgment.
10. **Neutrality of the Tool** Technological tools are never truly neutral. They are designed with particular purposes, shaped by funding, development contexts, and intended use. For instance, dating apps structure human relationships in specific ways, encouraging a consumerist mindset (present, choose, use, discard). The tool doesn't simply serve; it transforms the user. Our ways of relating begin to mirror the structure of the tool. As we use the instrument, the instrument shapes us in return.
11. **Demo-cracy vs Dromo-cracy** "Demo" means people, "dromo" means speed. Dromocracy refers to a political logic driven by speed and efficiency, often at the cost of reflection and quality. The legal system, under pressure from technological acceleration, risks prioritizing fast output over careful deliberation. Algorithms can aid in comparison and categorization, but they cannot reflect, interpret, or weigh moral consequences. Justice requires slowness—time to think, to empathize, to evaluate.
12. **Gratuity and Utility** Gratuity means without cost, but not without value. In capitalist systems, free labor (as in internships or online content) is often

devalued, even as it generates profit. The more something is offered for free, paradoxically, the less it is remunerated. True gratuity should not be confused with economic worthlessness. Tools, especially digital ones, are not neutral—they are invested with purposes, designed to extract value even from seemingly "free" use.

13. **Connection and Communication** Connection in digital terms often reduces geographical distance but lacks real proximity. To truly communicate is to be present with the other, not merely to observe them from afar. Social media creates an illusion of presence, of community, but what we experience is often just a mass of disconnected individuals. Without contact, there is no genuine encounter—only quantitative interaction.
14. **Market and Law** The market should be regulated by law, but increasingly, the opposite happens: economic interests shape legal frameworks. In a capitalist context, responsibility becomes obscured. On digital platforms, responsibility is diffused across developers, designers, users, and corporations. Actions are disconnected from actors. Unlike nature or animals, humans are responsible because they choose. But when our choices are shaped invisibly by systems, that responsibility becomes hard to trace.
15. **Freedom** Freedom is the precondition of responsibility. If we were not free, there would be no justice system—only behaviorism. Freedom allows us to shape our intentions and make choices. However, the digital environment often frames our choices within pre-defined options, limiting the full expression of will and intention. On social platforms, for instance, we adapt our language to fit algorithmic and community standards, diluting our freedom of expression.
16. **Dataism and Civilisation of Data** We are entering a "civilization of data," where every aspect of life—including legal proceedings—is being translated into digital code. Dataism, like the earlier Dadaism, responds to a world overtaken by rationality, standardization, and mechanical logic. The legal system, once a space of existential negotiation, is increasingly shaped by algorithms and quantification. This threatens to flatten our individuality into datasets.
17. **Power of Algorithms vs Power of Law** Algorithms impose a kind of pre-structured logic: decisions are made based on pre-set rules. Legal power, by contrast, must remain open to context, humanity, and interpretation. Algorithms risk turning justice into mere administration, stripping it of ethical substance. The legal process should remain a site of human negotiation, not just procedural output.

18. **Human Time and Technological Time** Technology restructures time. Court dates, processes, and decisions are increasingly dictated by technological systems, not human rhythms. Legal time used to include delay, reflection, and dialogical space. Now it risks being streamlined into machine-tempo. Efficiency replaces deliberation. But human justice requires time—not only to assess facts, but to weigh values and listen.
19. **Intention and Will** Intention and will are core expressions of human subjectivity. In algorithmic systems, they are constrained by the structures in which they operate. We can express ourselves freely in conversation, but when posting online, we must adhere to platform norms, limiting the range of our will. Thus, expression is no longer spontaneous but mediated by the "frames" of technological environments.
20. **Robo-Judge** The figure of the "robo-judge" epitomizes the risk of replacing juridical judgment with automated decision-making. While such systems can process enormous data sets and recognize patterns, they lack the ability to comprehend a person's existential context. Justice is not simply about applying rules, but about understanding the singularity of each case. Robots may ensure procedural legality, but not human justice.
21. **To Comprehend vs To Know** To know is to acquire factual, often quantitative, information. To comprehend means to share in the condition of the other—to grasp their situation from within. Machines may "know" more than any human, but they cannot comprehend, because they do not share our mortality, vulnerability, or emotional depth. Comprehension is essential for justice. Without it, legal processes risk becoming inhuman and irrelevant.